# 81 Amendment 81: Law Enforcement Communication with Federal Immigration Authorities

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

## Ballot Title

Shall there be an amendment to the Colorado Constitution requiring law enforcement to notify the department of homeland security when a person is charged with either a violent crime or any crime if the person has a prior felony conviction if law enforcement cannot determine that the person is lawfully present in the United States?

## What Your Vote Means

**YES** A "yes" vote on Amendment 81 requires law enforcement to notify federal immigration authorities after filing certain criminal charges against individuals who are not confirmed to be lawfully present.

**NO** A "no" vote on Amendment 81 maintains current law, which allows cooperation with federal immigration authorities in some criminal matters, but limits state and local law enforcement involvement in civil immigration enforcement.

# 82 Amendment 82: Constitutional Right to Purchase and Sell Natural Gas

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

## Ballot Title

Shall there be an amendment to the Colorado Constitution creating new law granting the right for consumers to purchase natural gas for cooking or heating in homes or businesses and for distributors and utilities to sell natural gas to consumers?

## What Your Vote Means

**YES** A "yes" vote on Amendment 82 establishes a state constitutional right to purchase and sell natural gas for use in homes and businesses.

**NO** A "no" vote on Amendment 82 maintains current law and regulations related to the purchase and sale of natural gas.

# 82

# Amendment 82: Constitutional Right to Purchase and Sell Natural Gas

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

## Amendment 82 proposes amending the Colorado Constitution to:

- establish a constitutional right for consumers to purchase natural gas for cooking or heating; and
- establish a constitutional right for distributors and utilities to sell natural gas for use in homes and businesses.

## What Your Vote Means

**YES** A "yes" vote on Amendment 82 establishes a state constitutional right to purchase and sell natural gas for use in homes and businesses.

**NO** A "no" vote on Amendment 82 maintains current law and regulations related to the purchase and sale of natural gas.

## Summary and Analysis of Amendment 82

### What is natural gas and how is it currently used in homes and businesses?

Natural gas is a fossil fuel comprised primarily of methane. It can be used to power appliances such as furnaces, water heaters, clothes dryers, stoves, and ovens for both residential and commercial properties. Other common household energy sources in Colorado include electricity and propane, which can be used to power these same appliances.

### Does Colorado currently regulate natural gas for use in homes and businesses?

The state regulates investor-owned natural gas utilities through the Public Utilities Commission (PUC), including rates, safety, and clean heat plans. In December 2025, the PUC issued a rule requiring these utilities to submit plans for a 41 percent reduction in greenhouse gas emissions by 2035, compared to 2015 levels, which align with emission targets in state law. The Colorado Department of Public Health and Environment regulates air pollution and sets emissions standards for natural gas appliances.

Local governments may also regulate the installation and repair of natural gas service, delivery, pipelines, and appliances. Several municipalities in Colorado have restricted the installation of natural gas appliances in new construction or certain renovation projects. For example, the Town of Crested Butte recently updated its building code, requiring that new residential buildings use electricity for heating, hot water heaters, and other appliances.

### Will the measure change natural gas laws in Colorado?

This measure will establish the right to purchase and sell natural gas for homes and businesses in the state constitution. By doing so, it may limit the ability for state or local governments to enforce existing or future regulations related to natural gas.

## Argument For Amendment 82

1) Natural gas is an affordable and widely available energy source that reliably heats homes and businesses, including during periods of extreme cold. Natural gas appliances are proven technologies, and most households in Colorado rely on natural gas as their primary heating source. This measure will ensure continued access to natural gas without interference from state or local governments.

## Argument Against Amendment 82

1) Using natural gas contributes to climate change through emitting greenhouse gases, leads to air pollution, and should not be protected in the state constitution. Doing so limits efforts to reduce greenhouse gas emissions, improve air quality, and adopt more sustainable options, such as wind, solar, and geothermal energy. Local communities should have the ability to make decisions about public health priorities, energy needs, and climate goals.

Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:

www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

## Fiscal Impact of Amendment 82

### State Spending

The measure may minimally increase expenditures for state agencies, primarily the Department of Local Affairs, to revise technical assistance to local governments concerning building codes that conflict with the right to purchase or sell natural gas. The measure may also increase workload and legal services for state agencies that regulate or monitor emissions from natural gas utilities or intervene in those cases, including the Public Utilities Commission, the Department of Natural Resources, the Department of Public Health and Environment, and the Colorado Energy Office.

### Local Government Spending

Local governments that currently have or are considering building codes that regulate, prohibit or restrict natural gas in commercial and residential development may have increased legal services and costs to conform the codes with state law, and to modify permitting, inspection, and compliance activities.

## Amendment 81
## Law Enforcement Communication with Federal Immigration Authorities

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado constitution. The text of the measure that will appear in the Colorado constitution below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

**Ballot Title:**
Shall there be an amendment to the Colorado Constitution requiring law enforcement to notify the department of homeland security when a person is charged with either a violent crime or any crime if the person has a prior felony conviction if law enforcement cannot determine that the person is lawfully present in the United States?

**Text of Measure:**
*Be it enacted by the People of the State of Colorado:*
**SECTION 1.** In the constitution of the state of Colorado, add section 17 to article XVIII as follows:
**Section 17. Notification requirements for felons and violent offenders unlawfully present in the United States**
(1) **Definitions.** As used in this section, unless the context otherwise requires, "Law enforcement" means:
(a) A certified peace officer described in law, who is employed by a law enforcement agency;
(b) A correctional officer; or
(c) An attorney or investigator who is employed by a district attorney.
(2) **Requirement to notify upon charging.** Notwithstanding any other provision of Colorado law, law enforcement shall notify the federal department of homeland security within seventy-two hours after charging the person with a crime if:
(a) The person is not lawfully present in the United States or the status of the person's lawful presence is unknown after a reasonable attempt to determine it has been made by law enforcement; and
(b) Either:
(I) The person is charged with a crime of violence as defined by Colorado statute; or
(II) The person has been convicted of a prior felony.
**(3) Reasonable effort required.** Law enforcement has a duty to make a reasonable effort to determine whether a person charged who would be the subject of a notification under this section is lawfully present in the United States.

## Amendment 82
## Constitutional Right to Purchase and Sell Natural Gas

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**Ballot Title:**
Shall there be an amendment to the Colorado Constitution creating new law granting the right for consumers to purchase natural gas for cooking or heating in homes or businesses and for distributors and utilities to sell natural gas to consumers?

**Text of Measure:**
*Be it enacted by the People of the State of Colorado:*
**SECTION 1.** In the constitution of the state of Colorado, **add** section 17 to article XVIII as follows:
**Section 17. Right to natural gas.**
(1) Consumers have the right to purchase natural gas for cooking or heating in homes or businesses throughout the state.
(2) Distributors and utilities have the right to sell natural gas for homes or businesses.